

The Forgotten Half of the Patent Clause

A note to the reader of this review copy

Thank you for the time you give this review copy. There is a fast way in. The argument is condensed chapter by chapter across three web pages — 24 summaries, about 100 minutes end to end — at marti124.github.io/Patent_LawyerSummary. Read it on a laptop or desktop rather than a phone; the diagrams and maps are worth seeing at full size. Where a summary raises a doubt or curiosity, turn to the full chapter in the volumes you are holding. If you would rather begin with the book itself, the Preface in Volume One opens with a short section, “Before You Begin: What to Read If Time Is Short,” naming the few chapters that do the work — an evening’s reading rather than a month’s.

THE CLAIM, IN ONE BREATH

Article I, Section 8, Clause 8 grants inventors an exclusive right for “limited Times.” When a patent expires, the right to make, copy, and improve the invention passes to the public. Post-1970 federal energy and safety standards make it unlawful to build a faithful remake of a regulated patent-expired design, so the monopoly ends but the exclusion does not. That blockage covers an estimated 58 percent of expired-patent commerce. The remedy is not deregulation. It is a time-shift: a certified remake answers to the standards of its original platform year, while modern standards remain untouched for new designs.

THE BOOK ADDRESSES TOP CONCERNS — SAMPLE CHAPTERS:

Why Nobody Noticed: How a Constitutional Violation Hides in Plain Sight	The Environmental Question: Why the Patent Bargain Does Not Unleash 1970s Emissions	
The Patent Clause Prong: “Limited Times” as Constitutive Language	When Outsiders Advance Constitutional Law and Other Disciplines	
The Takings Clause Prong: Cancellation of Vested Public Rights	Objections Considered	The Filable Case: Why 2026 and Not Before

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TWO MORE ADDRESSES, TYPED IN A MOMENT

marti124.github.io/Patent_Exam

The Two-Volume Brief — what each volume contains and how the argument is built across them. The Invitation to Review — why a non-lawyer wrote this, how it was built and checked, and what is being asked. A documented account of how AI, expertly used and heavily validated, has let experienced people make advances outside their own fields. And the open-book examination materials, which hand you the primary sources and invite you to reason the question independently — as eleven AI engines did, including the legal research system OpenCase.

marti124.github.io/Patent_EndNotes

The full endnotes, glossary, and key-terms apparatus — roughly 190 pages, every citation with a live link. It includes Appendix A, the SCOTUS Case Master Table: every Supreme Court case cited across the two volumes, sorted by decision year, each described for what it actually holds. Inclusion is not endorsement — the cases that cut against the argument are in there too, and say so.

IF YOU ARE AN ATTORNEY OR A LAW PROFESSOR

As I move toward publishers, the recurring question is whether a non-lawyer can be trusted to handle the constitutional argument responsibly. A few words from additional lawyers would settle that better than anything I could say myself. If, after your review, you are comfortable doing so, would you be willing to write a brief paragraph — two or three sentences — stating simply that the work is well-researched and merits serious consideration and a public hearing?

I am asking only for that — a statement of seriousness, not agreement with my conclusions.

REACH ME — THE AUTHOR

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To talk it over by phone, text me first at **952-905-0822**. I keep Eastern time.

— Roleigh Martin

The Desired SCOTUS Ruling Time-Shifts Regulations for Remanufacturing; the Commons Opens

THE PRINCIPLE

The regulatory standards for the original invention should be the same for a patent-expired remake — equal justice (standing) under the Patent Clause. A remake can happen if it need only meet the original standards.

THE PROBLEM TODAY

Current standards have ratcheted up and make it impossible to remanufacture the expired-patent item. The remedy time-shifts the rule back to the original's standard — the public's remake need meet only what the original met.

THE REGULATORY STANDARD

A grandfather exemption, earned by independent engineering certification, time-shifts the remanufactured design to the standards in force when its original was certified.

THE PATENT TERM

the exclusive right, granted for a limited Time

the patent still ends on schedule — it was never what blocked the public

THE MANUFACTURER'S PROTECTION

from low-cost remanufactured competition

THE CERTIFICATION GATE

A remanufactured patent-expired design passes the gate only if it contains nothing still under patent and meets the federal safety and emissions standards of its certified platform year — confirmed by independent engineering certification.

this protection ends.

Low-cost remanufactured competition is lawful again.

THE EXPIRED-PATENT COMMONS

Now open — the public may make, copy, improve, and remanufacture.

Held to the standards the original met — only the brand name and logo stay with the original maker.

the patent-expired invention

patent filing

Patent expires — the “limited Time” ends

time →

Simplified: the patent is shown expiring in the present, with remanufacturing desired now. The standard's applicability is time-shifted to the original's certified year — the wall stands, but for the remake it speaks the standards of that year.